

2016 SCC OnLine All 1586

In the High Court of Allahabad

(BEFORE SUDHIR AGARWAL AND KAUSHAL JAYENDRA THAKER, JJ.)

Rakesh Petitioner

v.

State of U.P. and 3 Ors. Respondents

Writ - C No. - 19095 of 2016

Decided on July 18, 2016

Counsel for Petitioner:- Satyendra Narayan Singh, Shiv Prakash

Counsel for Respondent:- C.S.C., Pranjal Mehrotra, Usha Kiran

1. Heard Sri. Shiv Prakash, learned counsel for the petitioner, Ms. Usha Kiran, learned counsel for respondent no. 4 and the learned Standing Counsel.

2. This writ petition is directed against citation dated 5.4.2016 issued by Tehsildar, Tehsil Kanth, District Moradabad for recovery of Rs. 6,24,558/- and other recovery charges from petitioner.

3. The case set up by petitioner is that his father late Om Prakash and Bharat Airtel Ltd. (hereinafter referred to as "Telecommunication Company") entered into an agreement dated 22.4.2007 whereby Telecommunication Company was allowed to install a Tower at the premises owned by petitioner's father and for that purpose obtain a separate electric connection in its own name. Agreement was in respect of Khet No. 59 Khata No. 173 (area 0.356) situate at Phatepur Visnoi, Tehsil Kanth, District Moradabad. The agreement was executed for a period of twenty years w.e.f. 1.6.2007. Electric connection was obtained by Telecommunication Company, being Service Connection No. 081333, and Respondent-electricity department was issuing regular bills to it.

4. Subsequently, a First Information Report was lodged against petitioner, being Case Crime No. 156 of 2014, under Section 135 of Electricity Act, 2003 (hereinafter referred to as "Act 2003") alleging that petitioner was found committing theft of electricity. In the said case, petitioner was arrested but has been en-larged on bail on 14.5.2014.

5. Petitioner approached Executive Engineer informing him that electricity connection on the aforesaid site is in the name of M/s. Bharti Airtel Limited and it has already paid electricity bills up to 31st October, 2014. On the aforesaid letter, matter was verified by respondent-4 and on page 28 following endorsement was made by it.

“संस० 2815/081333 बिल के अनुसार उक्त संयोजन फततेपुर विशनोई में स्थित है। 53419 रु० उपभोक्ता का बिल 2/15 तक जमा है।”

“As per the bill of connection no. 2815/081333, the said connection stands fixed at Fatatepur Vishnoi. The consumer's bill amount to the tune of Rs. 53419/- is paid upto to 2/2015.”

(English translation by the Court)

6. All of a sudden, petitioner has received aforesaid citation for recovery of Rs. 6,24,558/- which is patently illegal.

7. Respondents have filed counter affidavit stating that there was a surprise checking on 1.11.2014 by Enforcement Squad who found petitioner committing theft of electrical energy, by directly connecting electric supply cable. Checking report has been filed as Annexure-1 to the counter affidavit. The inspection report mentioned following facts:

“साक्ष्य को बनाये रखने हेतु किये गये कार्य एवं पायी गयी

तथ्यों को ठीक करने के सम्बन्ध में। उपरोक्त टावर परिसर को चेक करने पर पाया कि उपरोक्त परिसर में संयोजन स्वरु ओम प्रकाश एस/ओ स्वरु राम कुमार के नाम स्वीकृत है। जो परिसर में रखे टीआईएफ से विच्छेदित है। मौके पर संयोजनधारी का पुत्र राकेश एस/ओ स्वरु ओम प्रकाश ने टीआईएफ से अवैध रूप चारकोर काला केबिल जोड़कर बिना मीटर डायरेक्ट अवैध रूप से टावर में विद्युत का प्रयोग कर विद्युत की चोरी कर रहा है। यह जुर्म धारा 135 के अन्तर्गत दंडनीय अपराध है। आरोपी उपरोक्त को उसके द्वारा कृत जुर्म से अवगत कराते हुए शमन शुल्क जमा करने को कहा तो आरोपी ने कोई सन्तोष जनक जवाब नहीं दिया मौके से अवैध रूप से जुड़ा चारकोर काला केबिल लगभग 03 मीटर काटकर सील सर्वे मोहर हेतु कब्जे में लिया शमन शुल्क जमा न होने की स्थिति में एफआईआर की कार्यवाही की जा रही है।”

“Regarding the work done for keeping the evidence intact and the rectification of the faults detected. On the aforesaid tower premises being checked, the connection thereat was found to be sanctioned in the name of late Om Prakash s/o Late Ram Kumar which is disconnected from the TIF positioned in the premises. Rakesh s/o Late Om Prakash, the connection holder, is pilfering power on spot in the premises by illegally connecting it to the T.I.F. With a black charcoal cable directly and without routing it through the meter. This offence is punishable u/s. 135. The aforesaid accused, on being

informed about the offence committed by him and told to deposit the compounding fee, did not give any satisfactory reply. Having served nearly 3 meter charcoal cable cable illegally connected on the spot and having got it sealed, FIR proceeding is being initiated on compounding fee not being paid.”

(English translation by the Court)

8. Pursuant to the aforesaid inspection an assessment has been made by competent authority, under Section 126 of Act, 2003 for a sum of Rs. 6,24,533/-. A provisional assessment bill dated 10.11.2014 was served upon petitioner, who submitted reply to Superintendent Engineering and not to Assessment Officer i.e. Executive Engineer. Therein he said that checking report is incorrect, and therefore, assessment should be cancelled. Assessing Authority thereafter made assessment final and recovery proceedings have been initiated.

9. Learned counsel for respondents further submitted that against assessment made, petitioner has a statutory alternative remedy of appeal under Section 127 of Act, 2003.

10. However, we find that though a provisional assessment notice was issued to petitioner on 10.11.2014 but it has not been stated anywhere in the entire counter affidavit as to when final assessment order was passed by Assessment Officer. In absence thereof, no question of recovery of assessed amount from petitioner can arise.

11. Moreover, we find that impugned provisional assessment notice is not in conformity with the law laid down by this Court in *Ashok Kumar v. State of U.P.*, 2008 (6) ADJ 660. Despite repeated query, learned counsel appearing for respondent-4 could not show that any final order of assessment was ever passed by Assessing Authority at any point of time.

12. In that view of the matter, we direct that respondent-4 shall issue an appropriate notice of provisional assessment, in accordance with law laid down in *Ashok Kumar* (supra) and Clause 6.8 of Electricity Supply Code, 2005 (hereinafter referred to as ‘Code, 2005’). Adequate opportunity of defence to petitioner to submit his reply and also oral hearing shall be afforded and thereafter he shall pass a speaking order in accordance with law i.e. in terms of Clause 6.8 of Code, 2005 read with Section 126 of Act, 2003 and also law laid down in *Ashok Kumar* (supra). Impugned recovery proceedings shall remain suspended till final order of assessment is passed as directed above and thereafter it shall abide by such final assessment order.

13. Subject to above directions, the writ petition is disposed of.

disputes will be subject exclusively to jurisdiction of courts, tribunals and forums at Lucknow only. The authenticity of this text must be verified from the original source.